

Award
FINRA Dispute Resolution Services

In the Matter of the Arbitration Between:

Claimant
Mark Rose

Case Number: 25-01236

vs.

Respondent
M&T Securities, Inc.

Hearing Site: Wilmington, Delaware

Awards are rendered by independent arbitrators who are chosen by the parties to issue final, binding decisions. FINRA makes available an arbitration forum—pursuant to rules approved by the SEC—but has no part in deciding the award.

Nature of the Dispute: Customer vs. Member

This matter proceeded pursuant to Rule 12800 of the Code of Arbitration Procedure (“Code”). The customer did not request a hearing.

REPRESENTATION OF PARTIES

Mark Rose (“Claimant”) appeared pro se.

For Respondent M&T Securities, Inc. (“Respondent”): Catherine Grantier Cooley, Esq., Hodgson Russ LLP, Rochester, New York.

CASE INFORMATION

Statement of Claim filed on or about: June 13, 2025.

Mark Rose signed the Submission Agreement: June 13, 2025.

Statement of Answer filed by Respondent on or about: September 23, 2025.

M&T Securities, Inc. signed the Submission Agreement: August 12, 2025.

CASE SUMMARY

In the Statement of Claim, Claimant asserted the following causes of action: transfer error and reimbursement. The causes of action relate to unspecified securities.

Unless specifically admitted in the Statement of Answer, Respondent denied the allegations made in the Statement of Claim and asserted various affirmative defenses.

RELIEF REQUESTED

In the Statement of Claim, Claimant requested \$655.00 in compensatory damages; \$1,500.00 in other monetary damages; that all transaction be void; and return of all materials to Claimant.

In the Statement of Answer, Respondent requested an award in its favor and dismissing the Statement of Claim in its entirety, with prejudice.

OTHER ISSUES CONSIDERED AND DECIDED

The Arbitrator acknowledges having read the pleadings and other materials filed by the parties.

On September 23, 2025, Respondent filed a Motion to Dismiss pursuant to Rule 12504(a) of the Code of Arbitration Procedure ("Code") to which no response was filed. By Order dated October 20, 2025, the Arbitrator denied the Motion to Dismiss.

AWARD

After considering the pleadings, the Arbitrator has decided and determined in full and final resolution of the issues submitted for determination as follows:

1. Claimant's claims are denied in their entirety.
2. FINRA Dispute Resolution Services shall retain the \$75.00 filing fee that Claimant deposited previously.
3. Any and all claims for relief not specifically addressed herein are denied.

FEES

Pursuant to the Code:

Respondent has paid to FINRA Dispute Resolution Services the \$165.00 Member Surcharge Fee previously invoiced.

All balances are payable to FINRA Dispute Resolution Services and are due upon receipt.

ARBITRATOR

Mark H. Stein

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Sole Public Arbitrator

I, the undersigned Arbitrator, do hereby affirm that I am the individual described herein and who executed this instrument, which is my award.

Arbitrator's Signature

Mark H. Stein

Mark H. Stein
Sole Public Arbitrator

11/14/2025

Signature Date

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November 17, 2025

Date of Service (For FINRA Dispute Resolution Services use only)